

Monitoring and Evaluation Act, 2024

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Monitoring and Evaluation Act, 2080

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Preamble: Whereas, it is expedient to make legal provisions relating to making the monitoring and evaluation of development policies and plans factual, reliable, quality-oriented, systematic, result-oriented, transparent and effective by promoting accountability and responsibility in the implementation of development policies and plans to enhance cost-effectiveness;

The Federal Parliament has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act shall be called the "Monitoring and Evaluation Act, 2080".

(2) This Act shall commence from the thirty-first day after the date of its certification. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Monitoring" means the act of continuous and periodic surveillance, inspection, observation, information collection, analysis and improvement on the matters referred to in Sub-section (1) of Section 5 during the implementation of a plan.

(b) "Commission" means the National Planning Commission.

(c) "Third Party" means an independent person not involved in the formulation and implementation stages of a plan, and the said term also denotes an institution conducting monitoring or evaluation or their representatives.

(d) "Prescribed" or "As prescribed" means prescribed or as prescribed in the rules made under this Act.

(e) "Evaluation" means the evaluation conducted in an objective and systematic manner on the matters referred to in Sub-section (2) of Section 5 in relation to plans in the implementation stage or completed plans, and the said term also denotes the ex-ante evaluation conducted on the matters referred to in Sub-section (3) of the said Section regarding the condition prior to the commencement of the plan.

(f) "Plan" means a development policy, plan, program and project.

(g) "Public Body" means the following bodies:-

(1) Constitutional bodies or agencies, courts, ministries of the Government of Nepal, secretariats, commissions, departments or any other government bodies or offices subordinate thereto,

(2) Corporations, companies, banks, committees under full or majority ownership or control of the Government of Nepal, or commissions, corporations, authorities, companies, foundations, boards, centers, councils and other organized institutions of similar nature established at the public level pursuant to the

prevailing law or constituted by the Government of Nepal,

(3) Universities, colleges, research centers and other academic or educational institutions of similar nature operated by the Government of Nepal or receiving full or majority grants from the Government of Nepal,

(4) Development committees constituted under the Development Committee Act, 2013,

(5) Institutions operated with loans or grants from the Government of Nepal, and

(6) Other institutions specified by the Government of Nepal as a public body by publishing a notice in the Nepal Gazette. Chapter-2

Monitoring and Evaluation

3.

Monitoring and Evaluation to be Conducted: Plans of the Federation, Province and Local Level shall regularly and periodically be monitored and evaluated or caused to be monitored and evaluated. 4. Basis for Monitoring and Evaluation: (1) While monitoring and evaluating a plan pursuant to this Act, the following matters shall be taken as the basis:- (a) Long-term vision, (b) Periodic plan and strategy, (c) Plan document, schedule or results framework, (d) Approved annual development program, (e) Design and benefit-cost of the plan, (f) Technical and environmental aspects, (g) Projected achievements, (h) Coherence, relevance, effectiveness and efficiency, (i) Gender equality and social inclusion, (j) International treaties, agreements or commitments to which Nepal is a party, and (k) Other bases prescribed by the Commission. (2) While monitoring or evaluating pursuant to Sub-section (1), the indicators relating to investment and return determined at the time of approval of the plan shall also be taken as a basis. (3) While monitoring and evaluating periodic plans, master plans and annual plans pursuant to this Act, the subject of whether they are appropriate or not from the perspective of poverty reduction and sustainability shall also be taken as a basis. (4) While monitoring and evaluating plans relating to social development pursuant to this Act, the subject of whether the targeted groups have been benefited or not shall also be taken as a basis. 5.

Subjects for Monitoring and Evaluation: (1) While monitoring a plan pursuant to this Act, monitoring shall be conducted or caused to be conducted on the following matters:- (a) Whether the flow of investment and resources has been proper during the implementation of the plan, (b) Whether the manpower required to implement the plan is available, (c) Whether public audit, social audit or public hearing has been conducted pursuant to Section 27, (d) Whether the expected results of the plan have been achieved, (e) Whether resources and means have been obtained and used as per the plan document, approved annual program or schedule, (f) Whether the implementation of the plan has been according to the approved design, approved specifications and quality, (g) Whether the implementation capacity is as per the target of the plan, (h) Whether any problems or obstacles have been observed in the implementation of the plan, and (i) Whether necessary measures have been adopted to resolve any problems or obstacles observed in the implementation of the plan and, if such measures have been adopted, whether they are appropriate and effective. (2) While evaluating a plan pursuant to this Act, evaluation shall be conducted or caused to be conducted on the following matters:- (a) Whether an appropriate assessment of implementation challenges and risks was made during plan formulation, (b) Whether the plan has been implemented in an appropriate manner from the perspective of coherence, effectiveness, efficiency, impact and sustainability, (c) Whether the determined quality has been maintained during plan implementation and quality resources and means have been used, (d) Whether the plan has been completed within the stipulated time, (e) Whether the expected results from the implementation of the plan have been achieved in a timely and cost-effective

manner or what kind of results have been achieved, and (f) Whether investment has been made to achieve results according to the determined objectives and targets, and whether the return thereon has been achieved. (3) While conducting an ex-ante evaluation of a plan, analysis shall be done on the subject of whether it is appropriate to implement the plan based on the relevance, justification and benefit-cost of the plan. 6.

Technical Testing to be Conducted: (1) While monitoring or evaluating pursuant to Section 5, technical testing shall also be conducted as necessary regarding the quality of implementation of the plan. (2) If the manpower required for technical testing pursuant to Sub-section (1) is not available in the body responsible for monitoring or evaluation, such manpower available in another body may be requisitioned and deployed. (3) If the manpower for technical testing pursuant to Sub-section (2) is not available, the body responsible for monitoring or evaluation may avail the services of subject matter experts pursuant to the prevailing law. (4) For the purpose of availing services pursuant to Sub-section (3), the body responsible for monitoring or evaluation may prepare and maintain a roster of experts. 7. Stages of Evaluation: The body implementing programs and projects under a plan shall conduct or cause to be conducted evaluation as follows:- (a) Ex-ante evaluation in the pre-implementation stage of the program and project based on its justification, potential impact and benefit-cost, (b) Ongoing evaluation during the implementation stage of the program and project based on its projected achievement, relevance, coherence, effectiveness, efficiency and sustainability, (c) Completion evaluation at the time of or after completion of the program and project, assessing its projected achievement, relevance, coherence, effectiveness, efficiency and sustainability status, (d) Plan review evaluation of a plan that could not be completed within the stipulated time or has made slow progress, and (e) Impact evaluation conducted to assess the positive or negative impact of the program and project on the economy or people's lives after the program and project are completed and fully operational, examining relevance, coherence, effectiveness, efficiency, sustainability and impact. 8. Determination of Basic Standards for Evaluation: (1) The Commission shall determine standards for the evaluation of plans. (2) The standards determined by the Commission pursuant to Sub-section (1) shall be complied with by all concerned parties including public bodies and partners. (3) The Commission may issue necessary directives to the concerned body or official regarding monitoring and evaluation, and it shall be the duty of the concerned body or official to comply with such directives. Chapter-3 Bodies Conducting Monitoring and Evaluation 9.

10. Commission to Conduct Monitoring and Evaluation: (1) The Commission shall conduct monitoring and evaluation as necessary of the following plans:-

- (a) Periodic plans, master plans, annual plans of the Government of Nepal,
- (b) National pride projects, nationally prioritized projects, transformative projects, important projects specified by the Government of Nepal,
- (c) Projects operated with foreign assistance, and
- (d) Projects operated from grants provided to the Province and Local Level pursuant to the prevailing law relating to intergovernmental fiscal transfer.

(2) While monitoring and evaluating pursuant to Sub-section (1), in the case of projects selected by the Commission from among national pride projects, nationally prioritized projects, transformative projects, important projects specified by the Government of Nepal and projects operated with foreign assistance, based on cost, implementation timeline and importance of the project, monitoring and evaluation shall be

conducted once every six months.

(3) While evaluating plans pursuant to this Section, the Commission shall conduct or cause to be conducted the following:-

(a) Conducting ex-ante evaluation, mid-term evaluation, completion evaluation and impact evaluation of the plan,

(b) Evaluating the sustainability of plans that have been completed and are in operation, and

Explanation: For the purpose of this clause, "sustainability" means the condition of ensuring the resources, means and maintenance required for the continuous operation of such programs or projects for the determined period and achieving the expected return, whether during the construction phase or after completion.

(c) Conducting an aggregate evaluation of the evaluation of plans conducted by any other body.

(4) The Commission shall conduct or cause to be conducted an evaluation of the implementation status of long-term and mid-term periodic plans in the middle and at the end, and the suggestions obtained from such evaluation shall be taken as feedback while revising such plan or formulating a new plan.

(5) The Commission shall conduct necessary oversight on whether the concerned ministry and other bodies responsible for monitoring and evaluation have effectively conducted monitoring or evaluation pursuant to this Act. 11. Concerned Ministry to Conduct Monitoring and Evaluation: (1) The concerned Ministry shall conduct regular monitoring and evaluation of plans operated under its purview.

(2) The concerned Ministry shall conduct necessary oversight on whether subordinate departments or offices have effectively conducted monitoring and evaluation pursuant to this Act. 12. Concerned Department to Conduct Monitoring and Evaluation: The concerned Department shall conduct regular monitoring and evaluation of plans under its purview. 13. Project Chief to Conduct Monitoring and Evaluation: The Project Chief shall regularly monitor and evaluate the project, make project-related decisions factual based on the facts obtained, identify and resolve problems, and send the details thereof to the concerned Ministry and the Commission. 14.

Monitoring and Evaluation at the Province Level: (1) The Province Government shall conduct regular monitoring and evaluation of plans implemented at the province level and programs and projects operated from grants provided by the Province to the Local Level. (2) For the purpose of monitoring and evaluation pursuant to Sub-section (1), the Province Government shall designate a responsible body or official. (3) While monitoring and evaluating pursuant to this Section, the Province Government shall act in accordance with Chapter 2. (4) The Office of the Chief Minister and Council of Ministers of the concerned Province Government shall conduct necessary oversight on whether the responsible body or official has effectively conducted monitoring and evaluation pursuant to this Section. (5) The report of monitoring and evaluation conducted pursuant to this Section shall be provided by the body conducting monitoring and evaluation to the Commission upon request. (6) Other provisions relating to monitoring and evaluation by the Province Government shall be as per the concerned Province law, subject to this Act. 15.

Monitoring and Evaluation at the Local Level: (1) Rural Municipalities and Municipalities shall conduct regular monitoring and evaluation of plans implemented at the local level. (2) For the purpose of monitoring and evaluation pursuant to Sub-section (1), the Rural Municipality and Municipality shall designate a responsible body or official. (3) While monitoring and evaluating pursuant to this Section, the concerned Rural

Municipality and Municipality shall act in accordance with Chapter 2. (4) The concerned Rural Executive or Municipal Executive shall conduct necessary oversight on whether the responsible body or official has effectively conducted monitoring and evaluation pursuant to this Section. (5) The report of monitoring and evaluation conducted pursuant to this Section shall be provided by the concerned Rural Municipality or Municipality to the Commission upon request. (6) Other provisions relating to monitoring and evaluation by the Rural Municipality and Municipality shall be as per the concerned local law, subject to this Act. (7) The District Assembly shall conduct necessary coordination, supervision and facilitation regarding plans operated by the Rural Municipalities and Municipalities within the concerned district. (8) The District Assembly shall monitor the implementation of projects implemented by Rural Municipalities or Municipalities to maintain balance in the development and construction works of the Rural Municipalities and Municipalities within the concerned district. (9) While conducting coordination, supervision, facilitation or monitoring pursuant to Sub-section (7) or (8), the District Assembly may provide necessary suggestions to the concerned Rural Municipality or Municipality. (10) The suggestions given pursuant to Sub-section (9) shall be taken as guidance by the concerned Rural Municipality or Municipality while formulating and implementing plans. 16.

Responsibility of the Head of Public Body in Monitoring and Evaluation: (1) It shall be the responsibility of the head of a public body to make available the resources and means required to make monitoring and evaluation systematic and reliable, and to arrange necessary manpower. (2) The head of the public body implementing the program or project shall make available the data, information and documents related to monitoring or evaluation to the person deployed for monitoring or evaluation. (3) The head of the public body shall make public the reports, information, results and suggestions obtained from monitoring or evaluation through its website within one month. (4) The head of the public body shall take the results and suggestions obtained from monitoring or evaluation as feedback while implementing the plan. (5) The head of the public body shall also securely preserve important information and reports related to the office and plan management in electronic records. (6) A public body responsible for implementing a plan shall designate a division or section within its organization to carry out monitoring and evaluation related work, or a person responsible for this work. 17. Monitoring or Evaluation by a Third Party: (1) A body responsible for monitoring or evaluation pursuant to this Act may identify prescribed programs and projects and cause monitoring or evaluation to be conducted by a third party. (2) If monitoring or evaluation of any program or project is to be conducted by a third party pursuant to this Act, it shall be conducted through a person or institution that has no direct or indirect interest or stake in such program or project. 18. Monitoring or Evaluation to be Conducted Without Duplication: (1) While monitoring or evaluating by various bodies pursuant to this Act, it shall be conducted in a manner that does not duplicate the same subject. (2) Notwithstanding anything contained in Sub-section (1), if there is an objective basis that the monitoring or evaluation conducted by a body is ineffective or incomplete, the higher-level body may conduct or cause to be conducted monitoring or evaluation again. (3) The body monitoring and evaluating a plan pursuant to this Act may also conduct monitoring and evaluation in collaboration with other concerned bodies. 19.

Submission of Reports: (1) The public body implementing a plan shall submit quarterly, four-monthly and annual reports to the higher-level body, including the duration, target, physical and financial progress, status of key indicators, problems encountered in implementation and measures for resolution. (2) The concerned body shall review the reports received pursuant to Sub-section (1) at least quarterly, four-monthly and annually. (3) The public body implementing a plan shall prepare a completion report with suggestions related to monitoring or evaluation conducted during the implementation phase of the plan and submit it to the higher-level body within one month. (4) The concerned Ministry shall prepare quarterly, four-monthly and annual reports on the progress of plans of the bodies under its purview and send them to the Office of the

Prime Minister and Council of Ministers and the Commission. (5) A monitoring or evaluation report pursuant to this Act shall be prepared or caused to be prepared as soon as possible, incorporating the subjects as determined by the Commission. (6) The monitoring or evaluation report prepared pursuant to Sub-section (5) shall be made public through the following process:- (a) Posting on the website of the concerned Ministry or body, and (b) Conducting discussions, meetings or interactions with concerned stakeholders. 20.

May Provide Suggestions, Make Recommendations or Issue Directives: (1) If it appears that improvement is needed on any subject while monitoring and evaluating a plan pursuant to this Act, the body conducting monitoring and evaluation may provide necessary suggestions to the concerned body. (2) While monitoring and evaluating a project pursuant to this Act, if it appears that the project is likely to suffer serious harm or loss due to work not being done according to the target or objective of the project or due to failure to maintain the determined quality in plan implementation, any work related to the project may be stopped immediately, the responsible official may be removed from such responsibility, or other appropriate measures may be adopted. (3) The action pursuant to Sub-section (2) shall be taken by the responsible body or official for monitoring and evaluation themselves if they are competent to do so, and if it is to be done by another body or official, a recommendation shall be made to the concerned body or official with basis and reasons. (4) If the body responsible for monitoring and evaluation fails to conduct monitoring and evaluation regularly and effectively pursuant to this Act, the body overseeing the work and actions of such body may issue necessary directives to the responsible body or official for monitoring and evaluation. (5) It shall be the duty of the concerned body or official to comply with the suggestions, recommendations or directives given pursuant to Sub-section (1), (3) or (4). 21. May Provide Assistance: The Commission may provide necessary assistance to the Province Government or Local Level upon their request on the subject of monitoring or evaluation. Chapter-4 Provisions Relating to Committees 22.

National Development Problem Solving Committee: (1) There shall be a National Development Problem Solving Committee as follows to work on development policies, plans, their progress review, problem solving and policy matters:- Position Role (a) Prime Minister - Chairperson (b) Ministers of the Government of Nepal - Member (c) Chief Ministers of Province Governments - Member (d) Vice-chairperson of the Commission - Member (e) Members of the Commission - Member (f) Chief Secretary of the Government of Nepal - Member (g) Secretary, Ministry of Finance, Government of Nepal - Member (h) Secretary of the Commission - Member-Secretary (2) The meeting of the Committee pursuant to Sub-section (1) shall be held at least once in every four-month period. (3) Concerned officials or experts from the Federation, Province and Local Level may be invited to the meeting of the Committee pursuant to Sub-section (1) as necessary. (4) The procedures relating to the meeting and decisions of the Committee pursuant to Sub-section (1) shall be as determined by the said Committee. 23. Functions, Duties and Powers of the National Development Problem Solving Committee: (1) The functions, duties and powers of the National Development Problem Solving Committee pursuant to Section 22 shall be as follows:- (a) To review the implementation progress of plans operated under the ministries of the Government of Nepal, (b) To discuss issues received from the Ministry Level Development Problem Solving Committee and issue necessary directives, (c) To conduct or cause to be conducted study, research and evaluation of problems observed in plan implementation, (d) To resolve inter-ministerial and policy-level problems at the plan implementation level, (e) To cause an investigation into plans from which expected returns have not been achieved according to the targets set by public bodies and the performance of the head of such plan, (f) To issue directives to the Province and Local Level for the implementation of plans operated under fiscal transfer from the Government of Nepal, and (g) To perform such functions as the Government of Nepal may specify for the National Development Problem Solving Committee. (2) Based on the quarterly, four-monthly and annual reports received from the Ministry Level

Development Problem Solving Committee, the Commission shall prepare an integrated report and submit it to the Committee pursuant to Section 22. 24.

Ministry Level Development Problem Solving Committee: (1) There shall be a Ministry Level Development Problem Solving Committee as follows in all ministries of the Government of Nepal:- Position Role (a) Concerned Minister - Chairperson (b) Concerned Minister of State or Assistant Minister - Member (c) Member, Commission (looking after the concerned thematic area) - Member (d) Secretary, concerned Ministry of the Government of Nepal - Member (e) Joint Secretary, Office of the Prime Minister and Council of Ministers (looking after monitoring and evaluation matters) - Member (f) Joint Secretary, Ministry of Finance (looking after monitoring and evaluation matters) - Member (g) Joint Secretary, Ministry of Federal Affairs and General Administration (looking after human resource matters) - Member (h) Joint Secretary, Commission (looking after monitoring and evaluation matters) - Member (i) Joint Secretary, Commission (thematic area division) - Member (j) Chief, concerned Department under the Ministry - Member (k) Joint Secretary, concerned Ministry (looking after planning matters) - Member (l) Joint Secretary, concerned Ministry (division looking after monitoring and evaluation matters) - Member-Secretary (2) Experts on the concerned subject or officials of the concerned plan may be invited to the meeting of the Committee pursuant to Sub-section (1) as necessary. (3) The meeting of the Committee pursuant to Sub-section (1) shall be held at least once in every quarterly period. (4) The procedures relating to the meeting and decisions of the Committee pursuant to Sub-section (1) shall be as determined by the said Committee. 25. Functions, Duties and Powers of the Ministry Level Development Problem Solving Committee: The functions, duties and powers of the Ministry Level Development Problem Solving Committee pursuant to Section 24 shall be as follows:- (a) To review the implementation status of its Ministry and subordinate plans, (b) To discuss and resolve problems observed in the implementation of plans while reviewing pursuant to clause (a), (c) To identify decision options to be taken on matters that could not be resolved among the problems observed in the implementation of any plan and send them to the Commission with recommendations to place before the National Development Problem Solving Committee, (d) To discuss the quarterly, four-monthly and annual reports under the concerned Ministry, and (e) To ascertain whether monitoring or evaluation has been conducted by the concerned body or official regarding plans operated under the Ministry and Department and issue necessary directives. Chapter-5 Miscellaneous 26. Service Providers and Service Recipients May be Involved: To make the implementation process of a plan transparent and accountable, service providers and service recipients may be involved as prescribed while monitoring or evaluating such plan. 27.

Public Audit, Social Audit or Public Hearing to be Conducted: To promote social accountability in development construction from the Federation, Province and Local Level, the concerned body shall conduct public audit or social audit or public hearing as prescribed. 28. Use of Electronic System: (1) A public body may use an electronic system for service delivery. The Office of the Prime Minister and Council of Ministers and the Commission shall have access to such system as prescribed. (2) The Commission shall develop and network a management information system through electronic means to make monitoring or evaluation related work systematic and efficient. All public bodies shall be connected to such system and shall comply with the directives issued by the Commission regarding its use. Explanation: For the purpose of this Section, "Management Information System" means a system for systematically collecting information related to plans and various activities and transmitting them to the concerned body or level. 29. Physical and Financial Progress Details to be Submitted: The Province and Local Level shall submit details of the physical and financial progress and achievements through specified indicators of plans operated from conditional, complementary and special grants received from the Federation to the Commission through the body specified by the Government of Nepal. 30. Compliance Required: (1) A monitor or evaluator conducting

monitoring or evaluation pursuant to this Act shall comply with the following provisions:- (a) Not to use the resources or means of a project or take any kind of facility from the project's side while monitoring or evaluating the project, (b) Not to be involved in the monitoring or evaluation of a project in which they have been involved in the implementation process, (c) Not to assign the responsibility of monitoring or evaluation to an unauthorized person, (d) To maintain cordial and polite behavior while monitoring or evaluating, and (e) To conduct monitoring or evaluation impartially. (2) Notwithstanding anything contained in clauses (a) and (b) of Sub-section (1), such provision shall not apply while monitoring or evaluating a project in the capacity of the chief or employee of the project in which they are working. (3) In addition to the matters mentioned in Sub-section (1), the Commission may formulate and implement a code of conduct to be complied with by monitors or evaluators deployed for monitoring or evaluation work. 31.

32. Basis to be Taken for Performance Evaluation: While evaluating the performance of an employee or official involved in a plan, the work progress of such plan shall also be taken as a basis. 33. Action to be Taken: (1) In any of the following circumstances, an official responsible for monitoring and evaluation pursuant to this Act shall be subject to departmental action pursuant to the prevailing law relating to service conditions on the ground of failure to fulfill the official duty responsibly:-

- (a) If monitoring and evaluation is not conducted within the stipulated time or its report is not submitted on time,
- (b) If matters to be understood during monitoring and evaluation are not understood,
- (c) If matters pursuant to Section 30 are not complied with, or
- (d) If directives given by the oversight body or authority are not followed.

(2) In any of the following circumstances, an official responsible for monitoring and evaluation pursuant to this Act shall be subject to departmental action pursuant to the prevailing law relating to service conditions on the ground of failure to fulfill the duties or responsibilities of the post due to incompetence:-

- (a) If gross negligence or carelessness is shown while conducting monitoring and evaluation,
- (b) If monitoring and evaluation is conducted with mala fide intention, or
- (c) If a false report is submitted adversely affecting the implementation of the project.

(3) In any of the following circumstances, an official related to plan implementation shall be subject to departmental action pursuant to the prevailing law relating to service conditions on the ground of failure to fulfill the official duty responsibly:-

- (a) If the details requisitioned by the body or official conducting monitoring and evaluation or oversight are not provided in time or false data or information is provided, or
- (b) If the suggestions or directives given by the body or authority conducting monitoring and evaluation are not followed.

(4) If any harm or loss is caused to a public body or project due to non-compliance with suggestions or directives given by the body or official conducting monitoring and evaluation, the official related to such plan implementation shall be subject to departmental action pursuant to the prevailing law relating to service conditions on the ground of failure to fulfill the duties or responsibilities of the post due to incompetence.

(5) Notwithstanding anything contained in Sub-sections (1), (2), (3) and (4), if an official not subject to

departmental action performs such an act, the appointing authority of such official may relieve them from responsibility.

Provided that a reasonable opportunity to submit a defense shall be given before relieving them from responsibility.

(6) The Office of the Prime Minister and Council of Ministers shall maintain a record of the official relieved from responsibility pursuant to Sub-section (5) so that such responsibility is not assigned to them in the future.

(7) Action pursuant to Sub-section (1), (2), (3), (4) or (5) shall be taken by the body or authority conducting monitoring and evaluation or overseeing the same themselves if they are competent to do so, and if it is to be taken by another body or authority, it shall be forwarded in writing to the concerned body or authority.

(8) If an expert whose services have been availed pursuant to Sub-section (3) of Section 6 or a person or institution deployed for monitoring and evaluation pursuant to Section 17 performs any act under Sub-section (1) or (2), the amount provided to such person or institution for monitoring and evaluation shall be recovered, and such person or institution shall be blacklisted by the Commission for five years, prohibiting them from performing monitoring and evaluation related work.

(9) If any of the following circumstances are observed during monitoring and evaluation pursuant to this Act, a person or institution related to plan implementation shall be reported in writing to the concerned body for action pursuant to the prevailing law:-

(a) If work has not been performed to achieve the objective or target of the plan, or

(b) If the duty pursuant to the prevailing law has not been discharged.

(10) Notwithstanding anything contained elsewhere in this Section, if an official, person or institution related to plan implementation, or an employee, official, person or institution conducting monitoring and evaluation, or anyone performs an act that mala fidely causes harm or loss to a public body, such employee, official, person or institution shall be reported in writing to the concerned body for action pursuant to the prevailing law relating to corruption.

(11) Upon receipt of a written communication pursuant to Sub-section (7), (9) or (10), the concerned body shall take action pursuant to the prevailing law.

(12) While taking action pursuant to this Act, if a specific official of a body is identified for action, such official shall be subject to action, and if not identified, the head of such office shall be subject to action. 34. To be According to Prevailing Law: Matters written in this Act shall be according to this Act, and matters not mentioned in this Act shall be according to the prevailing law. 35. Power to Make Rules: The Government of Nepal may make necessary Rules for the implementation of this Act. 36.